

HOUSE No. 1684

The Commonwealth of Massachusetts

PRESENTED BY:

Tricia Farley-Bouvier

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to amend the civil rights law, in relation to reporting a non-emergency incident involving a member of a protected class.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tricia Farley-Bouvier</i>	<i>2nd Berkshire</i>	<i>1/14/2025</i>

HOUSE No. 1684

By Representative Farley-Bouvier of Pittsfield, a petition (accompanied by bill, House, No. 1684) of Tricia Farley-Bouvier relative to reporting non-emergency incidents involving members of protected classes. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1478 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to amend the civil rights law, in relation to reporting a non-emergency incident involving a member of a protected class.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 265 of the General Laws is hereby amended by inserting after Section 59 the
2 following section:-

3 SECTION 60. FALSE POLICE CLAIMS RELATING TO A MEMBER OF THE
4 PROTECTED CLASS; PENALTIES.

5 SECTION 60. (a) Any person who intentionally selects a person or property for harm or
6 causes damage to the property of another or causes physical injury or death to another or
7 summons a police officer or peace officer without reason to suspect a violation of the penal law,
8 any other criminal conduct, or an imminent threat to a person or property, in whole or in
9 substantial part because of a belief or perception regarding the race, color, national origin,

10 ancestry, gender, religion, religious practice, age, disability or sexual orientation of a person,
11 regardless of whether the belief or perception is correct, shall be liable, in a civil action or
12 proceeding maintained by such individual or group of individuals, for injunctive relief, damages,
13 or any other appropriate relief in law or equity. If it shall appear to the satisfaction of the court or
14 justice that the respondent has, in fact, violated this section, an injunction may be issued by such
15 court or justice, enjoining and restraining any further violation, without requiring proof that any
16 person has, in fact, been injured or damaged thereby. For the purposes of this subdivision, a
17 person lacks reason to suspect a violation of the penal law, any other criminal conduct, or an
18 imminent threat to a person or property where a reasonable person would not suspect such
19 violation, conduct, or threat.